

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shola Gbemi	Team: Squad #05	CCRB Case #: 201810229	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/06/2018 4:04 PM	Location of Incident: 94th Street and 59th Avenue	18 Mo. SOL 12/21/2020	Precinct: 110
Date/Time CV Reported Sun, 12/09/2018 1:10 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 12/09/2018 1:10 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Williams	24557	953571	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jose Checo	19715	962312	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Williams	Abuse: Police Officer Kevin Williams threatened to arrest an individual.	A . Unsubstantiated

Summary of Complaint

On December 9, 2018, § 87(2)(b) filed the following complaint online with the CCRB.

On November 6, 2018, at approximately 4:00 p.m., § 87(2)(b) got into a car accident at the intersection of 94th Street and 59th Avenue in Queens. After § 87(2)(b) called 911, Police Officer Kevin Williams and Police Officer Jose Checo of the 110th Precinct arrived at the location. An unidentified male pedestrian who was present at the location attempted to provide PO Williams with his account of the accident. PO Williams allegedly told the unidentified pedestrian, “I’m going to arrest you if you don’t go” (**Allegation A: Abuse of Authority, unsubstantiated**).

The investigation obtained body-worn camera footage from PO Williams (BR 02-03).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Kevin Williams threatened to arrest

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) In his phone statement, § 87(2)(b) recounted that PO Williams threatened to arrest an unidentified male pedestrian and an unidentified female pedestrian (BR 01). However, during his in-person sworn statement, § 87(2)(b) recounted that PO Williams solely threatened to arrest an unidentified male pedestrian (BR 04).

§ 87(2)(b) recounted that PO Williams asked him to provide his driver’s license, registration, and insurance paperwork. After § 87(2)(b) provided PO Williams with the documents, PO Williams returned to the driver’s seat of his police vehicle. One hour later, an unidentified male pedestrian who looked “fat” and who may have been white or Hispanic, approached PO Williams while he was still seated in the driver’s seat of his vehicle. The unidentified pedestrian asked PO Williams to take his information. PO Williams replied “No, get out, get out. I’m not going to take your statement.” PO Williams also asked the pedestrian to leave. The pedestrian said, “What kind of public service are you doing? What kind of public do you represent? If an accident happened, I have a civic responsibility to say that I witnessed something. I witnessed the accident. Take my information.” PO Williams opened the driver’s door of his vehicle and told the pedestrian, “I’m going to arrest you if you don’t go” (BR 04).

§ 87(2)(b) witnessed the incident, and she provided a phone statement in which she recounted that a light-skinned male pedestrian who could have been Hispanic or white approached PO Williams’ vehicle (BR 05). PO Williams told the pedestrian to leave, and he immediately left. § 87(2)(b) was not close enough to PO Williams and the pedestrian to hear everything PO Williams said to him. § 87(2)(b) did not hear PO Williams threaten to arrest any individual at the incident location.

§ 87(2)(b) provided the name of another female pedestrian, § 87(2)(b) who may have witnessed the incident. The investigation was unable to locate § 87(2)(b)

One of PO Williams' BWC clips shows him interacting with an unidentified male pedestrian (BR02). The clip is brief and does not show the beginning of PO William's interaction with the pedestrian. The clip also does not have audio for a portion of the interaction. The clip shows that PO Williams exited his vehicle to give the pedestrian a business card. The audio begins after PO Williams returned to his vehicle. While he was sitting in his vehicle, PO Williams told the pedestrian, "I'm telling you to leave right now. You're being recorded. You got a card, now get out of here." It is not clear if the clip ends before the interaction between PO Williams and the pedestrian concluded. The clip does not show PO Williams telling the male pedestrian that he would be arrested if he did not leave the incident location.

PO Williams denied that he threatened to arrest any individual at the incident location. He recalled that an eyewitness at the scene approached his vehicle and told him, "I saw everything. I saw everything" (BR 07). The eyewitness was a heavyset Hispanic man who was approximately 5'10" tall. PO Williams told the man, "You guys are not involved. You guys can go home and go about your business." PO Williams also told him, "Listen, we spoke to the driver and we spoke to the pedestrian. We don't really need your help anymore. We've got it under control." The man then said, "You need to take my statement." PO Williams offered the man a business card and said, "If you have a problem, take it up with whatever."

The investigation did not show PO Williams his BWC footage during his interview, and therefore he did not confirm if the interaction seen in the clip is the interaction which he described during the interview. § 87(2)(g)

PO Checo did not recall hearing PO Williams threaten to arrest anyone during the incident. He had no recollection of witnessing any interaction between PO Williams and civilian bystanders. He recounted that he spent most of the incident interviewing the woman who had been struck by § 87(2)(b)'s vehicle and preparing the accident report (BR 06).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 09).
- Police Officer Kevin Williams has been a member of service for six years and has been a subject in two additional complaints and three allegations, which were not substantiated. § 87(2)(g)

Mediation, Civil & Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On June 4, 2019, the undersigned requested record of any Notice of Claim filed regarding this incident with the New York City Comptroller's Office. As of the date of this report, no response has been received. The response will be added to the case file upon receipt (BR 08).

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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